



Legal Aid Act 1979

1979 CHAPTER 26

An Act to amend certain enactments relating to legal aid and legal advice and assistance. [4th April 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PROVISIONS FOR ENGLAND AND WALES

Extension of assistance to representation in proceedings.
1974 c. 4.

1.—(1) In section 2 (scope of advice and assistance) of the Legal Aid Act 1974 (in this Act referred to as “the Act of 1974”)—

- (a) in subsection (1) for the words “the following provisions of this section” there shall be substituted the words “subsection (2) and section 2A below”; and
- (b) subsections (3) and (4) and, in subsection (6), the words from “and” onwards shall be omitted.

(2) After that section there shall be inserted the following section—

“Representation in proceedings.

2A.—(1) In this Part of this Act ‘assistance by way of representation’ means any assistance given to a person by taking on his behalf any step in the institution or conduct of any proceedings before a court or tribunal, or of any proceedings in connection with a statutory inquiry, whether by representing him in those proceedings or by otherwise taking any step on his behalf (as distinct from assisting him in taking such a step on his own behalf).

(2) Without prejudice to section 2(2) above and subject to any prescribed exceptions, section 1 above

PART I

does not apply to any assistance by way of representation unless it is approved by an appropriate authority in accordance with regulations made for the purposes of this section ; and regulations so made may make different provision for different cases or classes of cases.

(3) Regulations may—

- (a) describe the proceedings in relation to which assistance by way of representation may be approved by reference to the court, tribunal or statutory inquiry, to the issues involved, to the capacity in which the person requiring the assistance is concerned, or in any other way ;
- (b) specify, in relation to any proceedings so described, the assistance by way of representation which may be approved ; and
- (c) preclude the giving of approval in the case of persons who would not be eligible for assistance if paragraph (a) of section 1(1) above were omitted or for the weekly sum specified in that paragraph there were substituted such lower weekly sum as may be prescribed.

(4) Regulations may also make provision—

- (a) as to which committees, courts, tribunals or other persons or bodies of persons are to be appropriate authorities ;
- (b) as to the procedure to be followed in applying for approval, the criteria for determining whether approval should be given and the conditions which should or may be imposed ; and
- (c) as to the circumstances in which approval may be withdrawn and the effect of its withdrawal.

(5) Where a person receives any assistance by way of representation in any civil proceedings before a court or any proceedings before a tribunal, then, except in so far as regulations otherwise provide, his liability by virtue of an order for costs made against him with respect to the proceedings shall not exceed the amount (if any) which is a reasonable one for him to pay having regard to all the circumstances, including the means of all the parties and their conduct in connection with the dispute ; and regulations shall make provision as to the court,

PART I

tribunal or person by whom that amount is to be determined and the extent to which any determination of that amount is to be final.

(6) For the purposes of any inquiry under subsection (5) above as to the means of a person against whom an order for costs has been made, his dwelling house and household furniture and the tools and implements of his trade shall be left out of account except in such cases and to such extent as may be prescribed, and except as so prescribed they shall, in all parts of the United Kingdom, be protected from seizure in execution to enforce the order.

(7) In this section 'statutory inquiry' has the meaning assigned to it by section 19(1) of the Tribunals and Inquiries Act 1971."

(3) In section 7 of the Act of 1974 (scope of legal aid)—

(a) in subsection (5) the words from "and may also" onwards shall be omitted; and

(b) after that subsection there shall be inserted the following subsection—

"(5A) A person may be refused legal aid if, in the particular circumstances of the case, it appears—

(a) unreasonable that he should receive it; or

(b) more appropriate that he should receive assistance by way of representation;

and regulations may prescribe the criteria for determining any question arising under paragraph (b) above."

(4) In section 13 of the Act of 1974 (power to award costs out of legal aid fund) after subsection (6) there shall be inserted the following subsection—

"(7) References in this section and section 14 below to legal aid include references to assistance by way of representation."

(5) In section 25 of the Act of 1974 (interpretation of Part I) after the definitions of "advice" and "assistance" there shall be inserted the following definition—

"'assistance by way of representation' has the meaning assigned to it by section 2A(1) above;".

Financial
limits on
prospective
cost of
advice and
assistance.

2. In section 3(2) of the Act of 1974 (financial limit on prospective cost of advice and assistance) for the words from "such larger sum" onwards there shall be substituted the words "such other sum as may be prescribed; and regulations made for the purposes of this subsection may prescribe different sums for different cases or classes of cases".

3. In section 4 of the Act of 1974 (contributions from persons receiving advice or assistance)—

PART I

Contributions from persons receiving advice or assistance.

- (a) in subsection (2) for the words from “such amount” onwards there shall be substituted the words “such amount as may be prescribed; and regulations made for the purposes of this subsection may prescribe different maximum payments for different amounts of disposable income and for different cases or classes of cases”;
- (b) subsection (3) shall be omitted; and
- (c) in subsection (4) for the words “any sum specified in subsection (2) or (3)” there shall be substituted the words “the sum specified in subsection (2)”.

4.—(1) For section 9(1) of the Act of 1974 (contributions from persons receiving legal aid) there shall be substituted the following subsection—

Contributions from persons receiving legal aid.

“(1) Where a person receives legal aid in connection with any proceedings, his contribution to the legal aid fund in respect of those proceedings may include—

- (a) if his disposable income exceeds £1,500 a year, a contribution in respect of income not greater than one quarter of the excess or such other proportion of the excess or such amount as may be prescribed by regulations; and
- (b) if his disposal capital exceeds £1,200, a contribution in respect of capital not greater than the excess or such lesser amount as may be so prescribed;

and regulations made for the purposes of this subsection may make different provision for different amounts of disposable income or disposable capital and for different cases or classes of cases.”

(2) In section 20(8) of that Act (regulations not to come into force unless or until approved by a resolution of each House of Parliament) for “9(2)” there shall be substituted “9(1) or (2)”.

5.—(1) For section 9(9) of the Act of 1974 (charge on property recovered for persons receiving legal aid) there shall be substituted the following subsections—

Charge on property recovered for persons receiving legal aid.

“(9) In this section references to the net liability of the legal aid fund on any person’s account in relation to any proceedings are references to the aggregate amount of—

- (a) the sums paid or payable out of that fund on his account in respect of those proceedings to any solicitor or counsel; and

PART I

- (b) if he has received any advice or assistance in connection with those proceedings or any matter to which those proceedings relate, any sums paid or payable out of that fund in respect of that advice or assistance to any solicitor,

being sums not recouped to that fund by sums which are recovered by virtue of an order or agreement for costs made in his favour with respect to those proceedings, or by virtue of any right of his to be indemnified against expenses incurred by him in connection with those proceedings.

(10) Where the solicitor acting for a person is a solicitor employed by the Law Society in employment to which section 16 below applies, references in subsection (9) above to sums payable out of the legal aid fund include references to sums which would have been so payable if the solicitor had not been so employed."

(2) Section 24(6) of that Act (which is superseded by this section) shall cease to have effect.

PART II

PROVISIONS FOR SCOTLAND

Extension of
assistance to
representation
in proceedings.
1972 c. 50.

6.—(1) In section 2 (scope of advice and assistance) of the Legal Advice and Assistance Act 1972 (in this Act referred to as "the Act of 1972")—

(a) in subsection (1) for the words "the following provisions of this section" there shall be substituted the words "subsection (2) of this section and section 2A of this Act";

(b) subsections (3) and (4) shall be omitted;

(c) for subsection (5) there shall be substituted the following subsection—

"(5) In the application of this section to Scotland, in subsection (2), for paragraphs (a) and (b) there shall be substituted the words 'at a time when he is receiving legal aid for the purposes of those proceedings'; and

(d) subsection (6) shall be omitted.

(2) After that section there shall be inserted the following section—

"Representa-
tion in
proceedings.

2A.—(1) In this Part of this Act 'assistance by way of representation' means any assistance given to a person by taking on his behalf any step in the institution or conduct of any proceedings before a court or tribunal, or of any proceedings in connection with a statutory inquiry, whether by representing him in those proceedings or by otherwise taking

any step on his behalf (as distinct from assisting him in taking such a step on his own behalf).

PART II

(2) Without prejudice to section 2(2) of this Act and subject to any prescribed exceptions, section 1 of this Act does not apply to any assistance by way of representation unless it is approved by an appropriate authority in accordance with regulations made for the purposes of this section; and regulations so made may make different provision for different cases or classes of cases.

(3) Regulations may—

- (a) describe the proceedings in relation to which assistance by way of representation may be approved by reference to the court, tribunal or statutory inquiry, to the issues involved, to the capacity in which the person requiring the assistance is concerned, or in any other way;
- (b) specify, in relation to any proceedings so described, the assistance by way of representation which may be approved; and
- (c) preclude the giving of approval in the case of persons who would not be eligible for assistance if paragraph (a) of section 1 of this Act were omitted or for the weekly sum specified in that paragraph there were substituted such lower weekly sum as may be prescribed.

(4) Regulations may also make provision—

- (a) as to which committees, courts, tribunals or other persons or bodies of persons are to be appropriate authorities;
- (b) as to the procedure to be followed in applying for approval, the criteria for determining whether approval should be given and the conditions which should or may be imposed; and
- (c) as to the circumstances in which approval may be withdrawn and the effect of its withdrawal.

(5) Where a person receives any assistance by way of representation in any civil proceedings before a court or any proceedings before a tribunal, then, except in so far as regulations otherwise provide, his liability by virtue of an order for expenses made against him with respect to the proceedings shall not exceed the amount (if any) which is a reasonable one

PART II

for him to pay having regard to all the circumstances, including the means of all the parties and their conduct in connection with the dispute; and regulations shall make provision as to the court, tribunal or person by whom that amount is to be determined and the extent to which any determination of that amount is to be final.

(6) For the purposes of any inquiry under subsection (5) of this section as to the means of a person against whom an order for expenses has been made, his dwelling house, wearing apparel and household furniture and the tools and implements of his trade shall be left out of account except in such cases and to such extent as may be prescribed, and except as so prescribed they shall, in all parts of the United Kingdom, be protected from diligence or any corresponding process in the execution of the award.

(7) In this section 'statutory inquiry' has the meaning assigned to it by section 19(1) of the Tribunals and Inquiries Act 1971."

1967 c. 43.

(3) In section 1 (scope of legal aid) of the Legal Aid (Scotland) Act 1967 (in this Act referred to as "the Act of 1967")—

- (a) in subsection (6) the words from "and may also" onwards shall be omitted; and
- (b) after subsection (6A) there shall be inserted the following subsection—

"(6B) A person may be refused legal aid if, in the particular circumstances of the case, it appears—

- (a) unreasonable that he should receive it; or
- (b) more appropriate that he should receive assistance by way of representation;

and regulations may prescribe the criteria for determining any question arising under paragraph (b) of this subsection."

(4) In section 13 of the Act of 1967 (power to award expenses out of legal aid fund) after subsection (6) there shall be inserted the following subsection—

"(7) References in this section and section 14 of this Act to legal aid include references to assistance by way of representation."

(5) In section 20 of the Act of 1967 (interpretation and construction) before the definition of the expression "Law Society" there shall be inserted the following definition—

"the expression 'assistance by way of representation' has the meaning assigned to it by section 2A(1) of the Legal Advice and Assistance Act 1972;".

7.—In section 3(2) of the Act of 1972 (financial limit on prospective cost of advice and assistance) for the words from “such larger sum” onwards there shall be substituted the words “such other sum as may be prescribed; and regulations made for the purposes of this subsection may prescribe different sums for different cases or classes of cases”.

PART II

Financial limits on prospective cost of advice and assistance.

8.—(1) In section 4 of the Act of 1972 (contributions from persons receiving advice or assistance)—

Contributions from persons receiving advice or assistance.

(a) in subsection (2) for the words from “such amount” onwards there shall be substituted the words “such amount as may be prescribed; and regulations made for the purposes of this subsection may prescribe different maximum payments for different amounts of disposable income and for different cases or classes of cases”;

(b) subsection (3) shall be omitted; and

(c) in subsection (4) for the words “any sum specified in subsection (2) of this section or in Schedule 1 to this Act” there shall be substituted the words “the sum specified in subsection (2) of this section”.

(2) Schedule 1 to the Act of 1972 (clients’ contributions) shall be omitted.

9. For section 3(1) of the Act of 1967 (contributions from persons receiving legal aid) there shall be substituted the following subsection—

Contributions from persons receiving legal aid.

“(1) A person’s contribution to the legal aid fund in respect of any proceedings may include—

(a) if his disposable income exceeds £1,500 a year, a contribution in respect of income not greater than one quarter of the excess or such other proportion of the excess or such amount as may be prescribed by regulations; and

(b) if his disposable capital exceeds £1,200, a contribution in respect of capital not greater than the excess or such lesser amount as may be so prescribed;

and regulations made for the purposes of this subsection may make different provision for different amounts of disposable income or disposable capital and for different cases or classes of cases.”

PART II
 Payments out
 of property
 recovered
 for persons
 receiving
 legal aid.

10.—(1) For section 3(7) of the Act of 1967 (payments out of property recovered for persons receiving legal aid) there shall be substituted the following subsections—

“(7) In this section references to the net liability of the legal aid fund on any person’s account in relation to any proceedings are references to the aggregate amount of—

- (a) the sums paid or payable out of that fund on his account in respect of those proceedings to any solicitor ; and
- (b) if he has received any advice or assistance in connection with those proceedings or any matter to which those proceedings relate, any sums paid or payable out of that fund in respect of that advice or assistance to any solicitor,

being sums not recouped to that fund by sums which are recovered by virtue of an order or agreement for expenses made in his favour with respect to those proceedings, or by virtue of any right of his to be indemnified against expenses incurred by him in connection with those proceedings.

(8) Where the solicitor acting for a person is a solicitor employed by the Law Society in accordance with Part II of the Legal Advice and Assistance Act 1972, references in subsection (7) of this section to sums payable out of the legal aid fund include references to sums which would have been so payable if the solicitor had not been so employed.”

(2) Section 17(5) of the Act of 1967 (which is superseded by this section) shall cease to have effect.

PART III

GENERAL

Financial
 provisions.

11. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable out of moneys so provided under the Act of 1974 or the Act of 1967.

Interpretation,
 etc.

12.—(1) In this Act—

“the Act of 1967” means the Legal Aid (Scotland) Act 1967 ;

“the Act of 1972” means the Legal Advice and Assistance Act 1972 ;

“the Act of 1974” means the Legal Aid Act 1974.

(2) This Act shall be treated for the purposes of the Scotland Act 1978 as if it had been passed before that Act.

1967 c. 43.

1972 c. 50.

1974 c. 4.

1978 c. 51.

13.—(1) The enactments mentioned in Schedule 1 to this Act shall have effect subject to the amendments specified in that Schedule. PART III
Minor
amendments
and repeals.

(2) The enactments mentioned in Schedule 2 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

14.—(1) This Act may be cited as the Legal Aid Act 1979. Citation,
commence-
ment and
extent.

(2) This Act may be cited together with the Act of 1974 as the Legal Aid Acts 1974 and 1979 and may be cited together with the Act of 1967 and the Act of 1972 as the Legal Aid and Advice (Scotland) Acts 1967 to 1979.

(3) This Act shall come into force—

(a) in relation to England and Wales, on such date as the Lord Chancellor may by order made by statutory instrument appoint; and

(b) in relation to Scotland, on such date as the Secretary of State may by order made by statutory instrument appoint;

and different dates may be so appointed for different provisions or different purposes.

(4) An order under subsection (3) above may make such transitional provision as appears to the Lord Chancellor or, as the case may be, the Secretary of State to be necessary or expedient in connection with the provisions thereby brought into force.

(5) This Act, except—

(a) section 1(2) so far as it relates to section 2A(6) of the Act of 1974;

(b) section 6(2) so far as it relates to section 2A(6) of the Act of 1972; and

(c) paragraphs 8 and 19 of Schedule 1,

does not extend to Northern Ireland.

SCHEDULES

Section 13(1).

SCHEDULE 1

MINOR AMENDMENTS

1967 c. 43.

The Legal Aid (Scotland) Act 1967

1. In section 2(1) of the Legal Aid (Scotland) Act 1967 (financial conditions of legal aid) and in the proviso thereto for the word "larger", wherever it occurs, there shall be substituted the word "other".

1976 c. 71.

2. In section 4(5) of that Act (provision for applying the rules in Schedule 1 to the Supplementary Benefits Act 1976)—

(a) for the word "shall", in the first place where it occurs, there shall be substituted the word "may";

(b) the words "there shall be observed" shall be omitted; and

(c) for the words from "except that" onwards there shall be substituted the words "shall be observed to such extent as may be prescribed".

3. In section 18 of that Act (offences)—

(a) in subsections (1) and (2) for the words "one hundred pounds" there shall be substituted "£500"; and

(b) in proviso (i) to subsection (2) after the word "any" there shall be inserted the words "committee, court, tribunal or other".

4. In section 20 of that Act (interpretation) in the definition of "person" after the word "unincorporate" there shall be inserted the words "which is not concerned in a representative, fiduciary or official capacity".

1972 c. 50.

The Legal Advice and Assistance Act 1972

5. In section 1 of the Legal Advice and Assistance Act 1972 (variation of limits of disposable income and disposable capital) for the word "larger", wherever it occurs, there shall be substituted the word "other".

6. In section 3(5) of that Act (meaning of "regulations") for the words "as so extended" there shall be inserted the words "as extended from time to time".

7. In section 11(1) of that Act (meaning of "prescribed") for the words "as so extended" there shall be substituted the words "as extended from time to time".

8. In section 14(5) of that Act (Act not to form part of the Law of Northern Ireland) after the word "Except" there shall be inserted the words "for section 2A(6) and except".

1974 c. 4.

The Legal Aid Act 1974

9. In section 1(2) of the Legal Aid Act 1974 (variation of limits on disposable income and disposable capital) the words "not less than £20" and "not less than £125" shall be omitted.

SCH. 1

10. In section 2(2)(b) of that Act (section 1 not to apply if there is a legal aid order) after the words "criminal proceedings" there shall be inserted the words "or any proceedings mentioned in subsection (3), (6) or (6A) of section 28 below".

11. In section 5(3)(a) of that Act (first charge for benefit of solicitor on any costs or property recovered) the words "or expenses" shall be omitted.

12. In section 6(2) of that Act (variation of limits on disposable income and disposable capital) the words "not less than £700" and "not less than £500" shall be omitted.

13. In section 9(2) of that Act (variation of amounts of free disposable income and free disposable capital) the words "not less than £250" and "not less than £125" shall be omitted.

14. In section 11(6) of that Act (provision for applying the rules in Schedule 1 to the Supplementary Benefits Act 1976)— 1976 c. 71.

(a) for the word "shall", in the first place where it occurs, there shall be substituted the word "may";

(b) the words "there shall be observed" shall be omitted; and

(c) for the words from "except that" onwards there shall be substituted the words "shall be observed to such extent as may be prescribed".

15. In section 21(1) of that Act (advisory committee) after the word "and", in the first place where it occurs, there shall be inserted the words "to make to him recommendations on such matters so relating as they consider appropriate; and the Lord Chancellor".

16. In section 22 of that Act (secrecy)—

(a) in subsection (1) in paragraph (a) after the word "any" there shall be inserted the words "committee, court, tribunal or other"; and

(b) in subsection (3) for "£100" there shall be substituted "£500".

17. In section 23(1) of that Act (proceedings for misrepresentation etc.) for "£100" there shall be substituted "£500".

18. In section 25 of that Act (interpretation of Part I) in the definition of "person" after the word "unincorporate" there shall be inserted the words "which is not concerned in a representative, fiduciary or official capacity".

19. In section 43(5) of that Act (Act not to extend to Scotland or Northern Ireland) after the word "Act" there shall be inserted the words "(except sections 2A(6) and 8(4))".

20. In Schedule 1 to that Act (proceedings for which legal aid may be given under Part I) paragraph 1(b) shall be omitted.

Section 13(2).

SCHEDULE 2

REPEALS

Chapter	Short title	Extent of repeal
1967 c. 43.	The Legal Aid (Scotland) Act 1967.	In section 1(6) the words from "and may also" onwards. In section 4(5) the words "there shall be observed". Section 17(5).
1972 c. 50.	The Legal Advice and Assistance Act 1972.	In section 2, subsections (3), (4) and (6), Section 4(3). Schedule 1. In Schedule 2, the entry relating to section 3(7) of the Legal Aid (Scotland) Act 1967.
1974 c. 4.	The Legal Aid Act 1974.	In section 1(2) the words "not less than £20" and "not less than £125". In section 2, subsections (3) and (4) and, in subsection (6), the words from "and" onwards. Section 4(3). In section 5(3)(a) the words "or expenses". In section 6(2) the words "not less than £700" and "not less than £500". In section 7(5) the words from "and may also" onwards. In section 9(2) the words "not less than £250" and "not less than £125". In section 11(6) the words "there shall be observed". Section 24(6). In Schedule 1, paragraph 1(b).